



IN THE COURT OF APPEAL, CIVIL DIVISION

REF: CA-2024-001342

ZAHMOUL –v– ZAHMOUL



CA-2024-001342

ORDER made by the Rt. Hon. Lord Justice Moylan

Upon the applicant having made an application for a stay of the order of 24 May 2024 and for the payment of maintenance pending suit

And Upon the court determining the application on the papers

Decision:

The application for a stay is granted in respect of paragraphs 21, 22, 23 and 24 of the order of 24 May 2024 pending determination of the application for permission to appeal and, if permission is granted, until determination of the appeal or further order in the meantime.

The application for the payment of maintenance pending suit (including in respect of arrears) is refused.

Reasons

The only issue which justifies the grant of a stay of the order of 24 May 2024 is the wife's assertion that the real property transfers provided for in the order would lead to a substantial tax liability for her which was not taken into account in the judgment (because she is a US citizen and the husband is a Non Resident Alien). If a stay is not granted and the transfers effected it would seem probable that the tax liability would be incurred. Accordingly I order a stay and direct that the husband file written submissions addressing this issue, as set out below. I have ordered a stay not only of the transfers to be effected by the wife but also of the transfers to be effected by the husband because it would be unfair to order the former without also ordering the latter, at least until the husband has filed written submissions as directed.

The Court of Appeal is not in a position to order maintenance pending suit pending determination of the application for permission to appeal. I have only stayed the real property transfers because there is no justification for staying any of the other provisions. Currently, therefore, the provisions of the judge's order dealing with maintenance stand. He has remitted the arrears, so they cannot be ordered to be paid. Further, the effect of his order is that the maintenance pending suit order is no longer in force. The provisions of the order of 24 May 2024, even though not in force until the Decree Absolute has been made, supersede the interim order.

I direct that the husband is to file and serve short written submissions (of not more than 4 pages) dealing with the issue of tax, as referred to above, by 4.00pm Wednesday 11 December 2024.

Notes:

- 1) Where an application (other than an application for permission to appeal) has been refused on the papers, the applicant may request that the decision be reconsidered.
- 2) An application for reconsideration must be filed within 7 days after the party is served with notice of the decision.
- 3) The reconsideration will be determined by the same or another judge on paper without an oral hearing; except that the judge determining the reconsideration on paper may direct that the reconsideration be determined at an oral hearing, and must so direct if the judge is of the opinion that the reconsideration cannot be fairly determined on paper without an oral hearing: see CPR 52.24.

Signed: BY THE COURT
Date: 5th December 2024